

ORDER SHEET
IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR.
JUDICIAL DEPARTMENT

Crl. Revision No.203 of 2022

Ghulam Madni **Vs.** The State and five others.

S.No. of order/ proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary
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17.11.2022	Sardar Muhammad Abbas Khan, Advocate for the petitioner.
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Through this criminal revision petition, Ghulam Madni, the petitioner, has challenged the vires of the order dated 10.11.2022 passed by the learned Additional Sessions Judge Khanpur whereby an application, filed by the petitioner seeking re-summoning of Imtiaz Ali, SI (PW-11) for further re-examination, was dismissed.

2. The brief facts of the case leading up to the filing of this petition are that the petitioner, being the complainant of case F.I.R No.328 of 2021 registered at Police Station Zahir Pir, District Rahim Yar Khan, filed an application before the learned trial court seeking re-summoning of Imtiaz Ali, SI (PW-11), the Investigating Officer of the case, for further re-examination on the ground that the further re-examination of Imtiaz Ali, SI (PW-11) was necessary in order for the learned trial court to reach the just decision of the case however, the said application was dismissed, hence, the petition.

3. The learned counsel for the petitioner submits that the order dated 10.11.2022 passed by the learned Additional Sessions Judge Khanpur whereby an application, filed by the petitioner seeking re-summoning of Imtiaz Ali, SI (PW-11) for further re-examination, was dismissed is liable to be set-aside being against the law and facts. The learned counsel for the petitioner further submitted that re-summoning of Imtiaz Ali, SI (PW-11) for further re-examination was essential for the just decision of the case. The learned counsel for the petitioner further submitted that refusing the re-summoning of Imtiaz Ali, SI (PW-11) for further re-examination would result in serious prejudice to the petitioner who was the complainant of the case.

4. I have heard the learned counsel for the petitioner and have perused the record with his able assistance.

5. A perusal of the record reveals that initially, the examination in chief of the prosecution witness namely Imtiaz Ali, SI (PW-11), the Investigating Officer of the case, was recorded by the learned trial court on 16.05.2022 and Imtiaz Ali, SI (PW-11), the Investigating Officer of the case, was cross examined by the learned defence counsel on 06.10.2022. Thereafter, the petitioner moved an application seeking re-summoning of Imtiaz Ali, SI (PW-11) for further re-examination which application of the petitioner was allowed by the learned trial court *vide* order

dated 06.10.2022 and the re-examination of Imtiaz Ali, SI (PW-11), the Investigating Officer of the case, was recorded by the learned trial court on 27.10.2022 and he was also further cross-examined by the learned defence counsel on the same date. After this re-examination and further cross-examination of Imtiaz Ali, SI (PW-11), the Investigating Officer of the case, the petitioner moved yet another application seeking re-examination of Imtiaz Ali, SI (PW-11), the Investigating Officer of the case, however, the said petition was dismissed *vide* the impugned order dated 10.11.2022. While dismissing the application as submitted by the petitioner, the learned trial court in its order dated 10.11.2022 rightly observed that there did not exist any reason for re-summoning of Imtiaz Ali, SI (PW-11) for further re-examination as already Imtiaz Ali, SI (PW-11), the Investigating Officer of the case, had been re-examined by the learned trial court on **27.10.2022** and he was also further cross-examined by the learned defence counsel on the same date. Moreover, the ground which was mentioned by the petitioner in his application for the re-summoning of Imtiaz Ali, SI (PW-11) for further re-examination was that Imtiaz Ali, SI (PW-11) had recorded a statement of one Muhammad Zahid Poli (CW-1) and by re-examining Imtiaz Ali, SI (PW-11), the prosecution wanted to bring on record the said recording, however, it is a fact that Muhammad Zahid Poli (CW-1) was

summoned by the learned trial court and his statement was recorded on **27.10.2022** wherein, Muhammad Zahid Poli (CW-1) categorically denied that he had made any statement which had been recorded by Imtiaz Ali, SI (PW-11), the Investigating Officer of the case. Additionally, the prosecution witness namely Imtiaz Ali, SI (PW-11) had already made two statements before the learned trial court and during the said statements, never stated that he had also recorded the statement of Muhammad Zahid Poli (CW-1) during the investigation of the case. If any statement of Muhammad Zahid Poli (CW-1) had indeed been recorded by the prosecution witness namely Imtiaz Ali, SI (PW-11), then it was in the notice of the prosecution on **16.05.2022** and **27.10.2022**, the dates on which, the learned trial court recorded the statements of the prosecution witness namely Imtiaz Ali, SI (PW-11) however, during those statements, the prosecution witness namely Imtiaz Ali, SI (PW-11) did not state anything about recording any statement of Muhammad Zahid Poli (CW-1) during the investigation of the case. Even when the prosecution had moved the first application seeking re-summoning of Imtiaz Ali, SI (PW-11) for further re-examination, which application of the petitioner was allowed by the learned trial court *vide* order dated **06.10.2022**, this fact was not mentioned that Imtiaz Ali, SI (PW-11) had recorded any statement of Muhammad Zahid Poli (CW-1) during the investigation of the case. I

have also perused the copy of the application filed by the petitioner seeking re-summoning of Imtiaz Ali, SI (PW-11). A perusal of the same reveals that not a single circumstance has been mentioned necessitating the re-summoning of Imtiaz Ali, SI (PW-11) for further re-examination. The petitioner also failed to claim in the said application that the failure to further re-examine Imtiaz Ali, SI (PW-11) would result in failure of justice and cause prejudice to the petitioner. Witnesses can only be recalled for further examination in exceptional cases where interest of justice so demands to rectify an obvious mistake. The petitioner has failed to satisfy this Court that further re-examination of Imtiaz Ali, SI (PW-11) was necessary for the just decision of the case. No prosecution witness can be summoned for further re-examination just to fill in the lacuna by any party. If this is allowed, trials will never come to an end. The learned trial court has certainly been vested with adequate powers under section 540, Cr.P.C. to summon and examine or re-summon and re-examine any witness in the trial before pronouncing the final verdict, but said provisions of the Code do not ingrain any such interpretation whereby it should be allowed to be used by a party to fill-in the lacunae of its case or to unnecessarily protract proceedings of the trial to defeat the ends of justice. This is what the learned trial Court has kept in view while dealing with the application of the petitioner. There

was no occasion for the learned trial court to have thought in terms, otherwise. The impugned order has been passed strictly in accordance with the requirement of the law and it did not lack any virtue of a legal order. The witness to be re-called for re-examination has already been examined twice and refusal to re-summon him will not amount to miscarriage of justice in any way. The revisional jurisdiction of this Court can be exercised only when there are exceptional circumstances and the order impugned is perverse or suffering from any type of infirmity.

6. As reiterated above, this criminal revision petition, being devoid of merits, is **dismissed** and the order dated 10.11.2022, passed by the learned Additional Sessions Judge, Khanpur is upheld.

(SADIQ MAHMUD KHURRAM)
JUDGE

T.M.Alvi/

Approved for reporting

Judge